

25STCV20049 25STCV20049

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21 TENTATIVE RULING 9:15 a.m., Wednesday, July 8, 2026

ANA MARIA MORALES RAXCACO, et al. v. FCA US LLC, et al. [25STCV20049]

MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF THE FIRST AMENDED COMPLAINT OF DEFENDANTS FCA US, LLC AND TUTTLE-CLICK'S TUSTIN CHRYSLER JEEP DODGE RAM

TIMELINE: Lemon law action

8/1/2024: Plaintiffs Ana Maria Morales Raxcaco and Ramiro Rene Alvarado

Perez (collectively, "Plaintiffs") purchase a new 2024 Jeep Wagoneer (the "Vehicle") from Defendant Tuttle-Click's Tustin Chrysler Jeep Dodge Ram ("Tuttle"). (Rader Decl., ¶ 3, Exh. 4; Raxcaco Decl., ¶¶ 3-4.) Defendant FCA US, LLC ("FCA"), the Vehicle's manufacturer, issues a written warranty to Plaintiffs in connection with their purchase. (Cronin Decl., ¶ 3, Exh. 2 at Exh. A.) The warranty includes a Basic Limited Warranty for a period of three years or 36,000 miles and a Powertrain Limited Warranty for a period of five years or 60,000 miles. (Ibid.)

Within months of the purchase, the Vehicle begins malfunctioning in various ways, including but not limited to issues with the Vehicle's display and rearview camera. (Raxcaco Decl., ¶ 7; Cronin Decl., Exh. 10, at pp. 36:6-38:2, 42:6-43:11, 44:2-20, 45:5-17, 46:24-47:14, 62:2-20.)

2/4/2025, 6/3/2025, 7/8/2025, and 9/22/2025: Plaintiffs present the Vehicle

to FCA's authorized service facilities for repairs. (Rader Decl., ¶¶ 5-7, Exhs. 5-8.) As early as February 2025, Plaintiffs complain to FCA's facilities that the Vehicle's rearview camera would unpredictably malfunction and "go black." (Raxcaco Decl., ¶¶ 9-10.)

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6/30/2025: Plaintiff files the Complaint. The operative First Amended

Complaint ("FAC"), filed 1/6/2026, alleges causes of action for:

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1. Violation of Civil Code § 1793.2, subd. (d)٤٤٤٤
2. Violation of Civil Code § 1793.2, subd. (b)٤٤٤٤
3. Violation of Civil Code § 1793.2, subd. (a)(3)٤٤٤٤
4. Breach of the Implied Warranty of Merchantability٤٤٤٤
5. Negligent Repair
6. Fraudulent Inducement-Concealment

2/2026: Plaintiffs present the Vehicle to an FCA-authorized dealership for

additional repairs related to the rearview camera and visibility system. (Cronin Decl., Exh. 10, at p. 62:6-20.)

3/18/2026: The Court sustains FCA's demurrer to the sixth cause of action in

the FAC with leave to amend and grants FCA's motion to strike Plaintiffs' request for punitive damages with leave to amend. (Def. RJN, Exh. 3.) Plaintiffs do not file an amended pleading.

4/15/2026: FCA and Tuttle (collectively, "Defendants") file this Motion for

Summary Judgment, or in the Alternative, Summary Adjudication as to the FAC, which is followed by Plaintiffs' Opposition (6/18/2026) and Defendants' Reply (6/26/2026).

6/2026: Plaintiffs present the Vehicle to an FCA-authorized dealership for

additional repairs, including complaints related to the rearview camera and visibility system. (Raxcaco Decl., ¶ 18, Exh. 1.)

TENTATIVE RULING: MOTION FOR SUMMARY ADJUDICATION OF DEFENDANTS FCA US LLC AND TUTTLE-CLICK TUSTIN CHRYSLER JEEP DODGE RAM is DENIED in part and GRANTED in part.

I. MOTION FOR SUMMARY ADJUDICATION

Defendants move for summary judgment of the entire FAC, or alternatively, summary adjudication of each remaining cause of action in the FAC.

A. 1st Cause of Action: Violation of Civil Code § 1793.2, subd. (d) —DENIED

Triable issues of material fact exist with respect to Plaintiffs' first cause of action. To establish a claim under Civil Code section 1793.2, subdivision (d), a vehicle buyer must show that the manufacturer had a reasonable number of opportunities to fix the Vehicle's defect. (CACI, No. 3202.) To satisfy this element, the vehicle manufacturer (or its authorized repair facility) typically must have been given at least two opportunities to repair the Vehicle. (Id.; *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 ["Section 1793.2(d) requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle 'after a reasonable number of attempts.' 'Attempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle."].) "The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances..." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799 (*Robertson*)).

Here, FCA argues that Plaintiffs did not present the Vehicle to any FCA-authorized repair facility more than once for a repair of any single non-conformity to FCA's warranty. FCA submits evidence suggesting that Plaintiffs presented the Vehicle to FCA's authorized service facilities on at least four occasions. (Rader Decl., ¶¶ 4-6, Exhs. 5-7; Cronin Decl., ¶ 5, Exh. 8.) In February 2025, Plaintiffs brought the Vehicle to an FCA facility for a recall-related inspection and routine maintenance including tire pressure/fluids check. (Rader Decl., Exh. 5.) FCA submits the declaration of Richard Rader, the Service and Parts Director at Tuttle, who declares based on a review of Tuttle's records that no defects or abnormal conditions were reported or found in the Vehicle. (Id. ¶ 4.) In June 2025, Plaintiffs presented the Vehicle for routine maintenance, including an oil and filter change, tire rotation, and inspection. (Id. Exh. 6.) Mr. Rader declares that no defects or abnormal conditions in the Vehicle were reported or found. (Id. ¶ 5.) In July 2025, Plaintiffs presented the Vehicle for a loss of power when accelerating and concerns with the infotainment system screen. (Cronin Decl., ¶ 5, Exh. 8.) According to Plaintiffs' repair order, the dealership technician performed a software update and reset the infotainment system. (Id. Exh. 8.) In September 2025, Plaintiffs presented the Vehicle for overheating and oil light concerns. (Rader Decl., Exh. 7.) Mr. Rader declares that diagnostic testing revealed a thermostat malfunction, which was replaced under the warranty. (Id. ¶ 6.) Although Plaintiffs sought repairs on four occasions, FCA's evidence is sufficient to make a prima facie showing that each discrete non-conformity to the warranty (identified at the July 2025 and September 2025 visits only) were diagnosed and repaired within just one repair attempt. (Cronin Decl., ¶ 5, Exh. 8; Rader Decl., ¶ 6, Exh. 7.)

In response, Plaintiffs argue that the Vehicle was presented at least six times during the warranty period (i.e. the four visits identified by FCA and additional visits in February 2026 and June 2026), with complaints including malfunction of the rearview camera and visibility system. (Raxcaco Decl., ¶¶ 9-18.) The Vehicle's rearview camera and visibility system is covered by the three-year basic warranty. (Cronin Decl., ¶ 3, Exh. 2.) Moreover, FCA's own safety recall regarding the Rearview Camera Module (which applies to Plaintiff's vehicle model) admits that a defect in the rearview camera creates safety concerns and an increased risk of injury. (Id., Exh 1, at p. 1.)

Plaintiff Raxcaco confirms that she received a safety recall notice in February 2025 regarding an issue with the Vehicle's back-up camera. (Raxcaco Decl., ¶ 9.) Plaintiff declares that she had noticed that the screen on the Vehicle's back-up camera would unpredictably malfunction and "go black" as early as the first few months of owning the Vehicle. (Ibid.) Plaintiff states that she complained about this defect when she presented the Vehicle to FCA's dealership in February 2025, but the Vehicle continued to have problems thereafter. (Id. ¶¶ 9-10.) In June 2025, Plaintiff declares that she again complained to the FCA dealership that she was "still having problems with the screen and the backup

camera," but the Vehicle continued to have problems when it was returned to her. (Id. ¶¶ 11-12.) Plaintiff further declares that she specifically complained about the Vehicle's screen and backup camera problems (in addition to other concerns) at her visits to the dealership in July 2025 and September 2025. (Id. ¶¶ 13, 15.) Critically, Plaintiffs highlight that FCA's own Repair Order exhibits document Plaintiffs' complaints about the rearview camera/screen display. (See Rader Decl., Exh. 7, at p. 1 ["customer states that radio goes blank and back up camera does not turn on at times"]; see Cronin Decl., Exh. 8, at p. 7 ["customer states that while driving ... radio screen when blue and restarted"].) Yet, Plaintiff declares that the Vehicle's screen and back-up camera continue to "frequently and unpredictably" malfunction and "go black." (Raxcaco Decl., ¶ 16.)

Further, in her February 2026 deposition, Plaintiff testified that the rearview camera system was still not working as recently as “last week” when she asked the dealership to look at the camera again due to screen freezing and video issues. (Cronin Decl., Exh. 10, at p. 62:6-20.) Most recently, Plaintiff declares that she presented the Vehicle to the dealership in June 2026 with complaints regarding the back-up camera and screen. (Raxcaco Decl., ¶ 18, Exh. 1.) The Repair Order from this visit specifically indicates that Plaintiff complained that the rearview camera does not turn on when put in reverse. (Id. Exh. 1.)

Taken together, Plaintiffs’ evidence is sufficient to raise a factual dispute as to whether and when FCA had notice of the rearview camera/screen defect in the Vehicle such that they had a reasonable opportunity to repair the defect. Ms. Raxcaco indicates that she notified the FCA-authorized technicians of her concerns on every repair visit. At minimum, the Repair Orders confirm that Plaintiffs made complaints about the rearview screen on two to three occasions. “Whether or not the manufacturer’s agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible.” (Oregel v. American Suzuki Motors, Inc. (2001) 90 Cal.App.4th 1094, 1103–1104, italics added.) Considering the totality of the evidence, whether FCA had a reasonable opportunity to repair the Vehicle’s rearview camera defects is a factual question that should be resolved by the jury. (Robertson, supra, 144 Cal.App.4th at p. 799.)

B. 2nd Cause of Action: Violation of Civil Code § 1793.2, subd. (b) —DENIED

Triable issues of material fact exist with respect to Plaintiffs’ second cause of action. Civil Code section 1793.2, subdivision (b) requires a vehicle manufacturer to begin vehicle repairs within a reasonable time and to repair the vehicle within 30 days. (CACI, No. 3205.) A vehicle buyer may demonstrate a violation of this provision either by demonstrating that the manufacturer failed to timely start repairs or failed to timely finish repairs. (Ibid.)

Here, FCA argues that its repair timeline was reasonable because Plaintiffs presented the Vehicle to FCA’s service facilities on four occasions and none of the visits took over 30 days to complete. (Rader Decl., ¶¶ 4-6, Exhs. 5, 6, 7; Cronin Decl., ¶ 5, Exh. 8.) At Plaintiffs’ February 2025 and June 2025 service visits, the Vehicle received routine maintenance, and the Vehicle was returned on the same day. (Rader Decl., ¶¶ 4-5, Exhs. 5, 6.) At Plaintiffs’ July 2025 and September 2025 visits, the Vehicle received warranty repairs, and the maintenance was completed within eight days and nine days, respectively. (Cronin Decl., ¶ 5, Exh. 8; Rader Decl., ¶ 6, Exh. 7.) Because the Vehicle was held by FCA’s dealerships for less than 30 days total for all service attempts, FCA argues that Plaintiffs cannot establish a violation of Civil Code section 1793.2, subdivision (b).

In response, Plaintiffs argue that the Vehicle has been repeatedly presented to FCA’s facilities for problems with its rearview camera and visibility systems, but the defect has never been repaired. (Raxcaco Decl., ¶¶ 9-18, Exh. 1; Rader Decl., Exh. 7; Cronin Decl., Exh. 8.) As described above, Ms. Raxcaco’s testimony suggests that FCA’s dealership had notice of the rearview camera defect in the Vehicle as early as February 2025. (Raxcaco Decl., ¶ 9; see supra, Section I.A.) Within FCA’s own repair orders, Plaintiffs’ complaints about the Vehicle’s screen were documented in July 2025 and specific complaints about the rearview camera were documented in September 2025. (Cronin Decl., ¶ 5, Exh. 8; Rader Decl., ¶ 6, Exh. 7.) Yet, Plaintiff declares that the Vehicle’s backup camera and screen continue to malfunction nearly one year later, suggesting that FCA failed to remedy the warrantable defect within the requisite 30 days. (Raxcaco Decl., ¶ 16; Cronin Decl., Exh. 10, at p. 62:6-20.)

Further, Plaintiffs also present evidence that these unrepaired defects have substantially impaired the use, value, and safety of the Vehicle, such as the inability to check for children behind the Vehicle while backing up. (Raxcaco Decl., ¶¶ 20-21.) In fact, FCA’s own safety recall for the Vehicle’s rearview camera and visibility systems admits to the potentially dangerous conditions created by a malfunctioning rearview camera system and indicates the requirement for repairs. (Cronin Decl., Exh. 1, at p. 1.) Because the Vehicle’s rearview camera and visibility system remains unremedied to date, a triable factual question exists as to whether FCA failed to timely start and/or finish repairs of a substantial defect in the Vehicle.

C. 3rd Cause of Action: Violation of Civil Code § 1793.2, subd. (a)(3) — DENIED

Triable issues of material fact exist with respect to Plaintiffs' third cause of action. Civil Code section 1793.2 provides, in relevant part: "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made

an express warranty shall ...
Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code § 1793.2, subd. (a)(3).)

Here, FCA relies on the conclusory declarations of Mr. Rader and FCA's counsel to suggest that FCA's service literature was adequately provided to the servicing dealerships. (Rader Decl., ¶ 8; Cronin Decl., ¶ 9, Exh. 11.) Mr. Rader's testimony is necessarily limited to the service literature received by Tuttle, yet the evidence demonstrates that Plaintiffs presented the Vehicle to a dealership other than Tuttle on at least one occasion. (Id., Exh. 8.) Likewise, FCA fails to follow proper authentication procedures to support the declaration of counsel with respect to the service literature. Additionally, FCA argues that Plaintiff has "no evidence" to suggest that any parts or service literature were ever withheld by FCA from the authorized service facilities that performed work on the Vehicle. To establish this contention, FCA relies entirely on Plaintiffs' "document production" without submitting the totality of Plaintiffs' discovery responses. (Id. Exh. 9.) The Court finds FCA fails to present sufficient admissible prima facie evidence showing that FCA's service literature to all repair facilities was ineffective and causally related to the Vehicle's ineffective repairs, or alternatively, that the totality of Plaintiffs' discovery responses are entirely devoid of evidence to support this cause of action.

Even assuming that this evidence was sufficient to shift the burden, the fact that the Vehicle remains unrepaired despite multiple repair attempts supports a reasonable inference that FCA's service literature was ineffective to diagnose and remedy the defect. Plaintiff identifies FCA's safety recall for the Rearview Camera Module as the only literature available to FCA's dealerships regarding the unremedied defective rearview camera system. (Cronin Decl., Exh. 1, at p. 1.) Plaintiff presented the Vehicle to FCA's dealership when she received the recall notice in February 2025 and repeatedly complained about this defect during multiple repair attempts, but the rearview camera remains defective and malfunctions in an unsafe manner. (See *supra*, Section I.A.) Thus, triable issues of material fact exist with respect to whether FCA's diagnostic literature regarding the rearview camera was inadequate and whether this literature contributed to FCA's failure to repair the Vehicle's rearview camera defect.

D. 4th Cause of Action: Breach of the Implied Warranty of

Merchantability — DENIED

Triable issues of material fact exist with respect to Plaintiffs' fourth cause of action. To establish that a vehicle manufacturer breached the implied warranty of merchantability, a plaintiff must establish the following elements: (1) that the plaintiff bought a vehicle manufactured by the defendant; (2) that at the time of purchase, the defendant was in the business of manufacturing vehicles; (3) that the vehicle was not fit for the ordinary purpose for which it is used; (4) that the

plaintiff was harmed; and (5) that defendant's breach of the implied warranty was a substantial factor in causing the plaintiff's harm. (CACI, No. 3210.) The implied warranty of merchantability "does not 'impose a general requirement that goods precisely fulfill the expectation of the buyer. Instead, it provides for a minimum level of quality.'" (American Suzuki Motor Corp. v. Superior Court (1995) 37 Cal.App.4th 1291, 1295-1296 (American Suzuki).)

Civil Code section 1791.1, subd. (c) provides "that the duration of the implied warranty of merchantability shall be the same as the duration of any reasonable express warranty that accompanies the product, but in no event shorter than 60 days or longer than one year." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1310.) That is, "[a]ccording to [section 1791.1's] plain language, the implied warranty exists for at least 60 days and at most for one year after delivery of the product; after that time, the warranty ceases to exist." (Id. at p. 1309.) However, "[t]here is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period." (Id. at p. 1310.)

Here, FCA argues that Plaintiffs failed to identify an unmerchantable condition in the Vehicle before the one-year expiration of the statutory implied warranty. FCA frames Plaintiffs' complaints regarding the Vehicle as merely seeking routine

maintenance, a preventative recall, and an infotainment system concern. (Rader Decl., ¶¶ 4-5. Exh. 5, 6; Cronin Decl., ¶ 5, Exh. 8.) FCA highlights that Plaintiffs continued to drive the Vehicle after each of these service visits, as Ms. Raxcaco admitted that she continued to use the Vehicle daily for personal use through at least February 2026. (Id. Exh. 10, at pp. 30:9-31, 50:18-21.) Ms. Raxcaco also admitted that the Vehicle has never been towed. (Id. at p. 48:7-8.)

In response, Plaintiffs argue that Ms. Raxcaco's own testimony confirms that the rear-view camera defects became noticeable within mere months of Plaintiffs' purchase of the Vehicle. (Cronin Decl., Exh. 10, at pp. 36:17-37:5, 47:11-14.) As discussed above, there is sufficient evidence to conclude that Plaintiffs presented the Vehicle to FCA's dealerships within the first year after purchase with complaints about the Vehicle's rearview camera/screen malfunctions, which have continued to malfunction while using the Vehicle through at least June 2026. (Raxcaco Decl., ¶¶ 9-18, Exh. 1; Cronin Decl., Exh. 8; see supra, Section I.A.) Further, Plaintiff points out that FCA's own safety recall discloses that a defect in the Vehicle's rearview camera was present even before February 2025, potentially at the time of manufacture. (Cronin Decl., Exh. 1, at p. 1.) As described above, Ms. Raxcaco regards the Vehicle's rearview camera/screen defect as having substantially impaired the Vehicle's use, value, and safety. (Raxcaco Decl., ¶¶ 20-21.) In sum, Plaintiffs' evidence supports a reasonable inference that the Vehicle was subject to recall and presented for (ineffective) repairs of the same dangerous defect within one year of purchasing

the Vehicle. Whether the rearview camera and visibility system defect created such a substantial safety and functionality issue that the Vehicle was unmerchantable is a factual question that should be resolved by the jury.

E. 5th Cause of Action: Negligent Repair — GRANTED

No triable issues of material fact exist with respect to Plaintiffs' fifth cause of action. "The elements of a cause of action for negligence are duty, breach, causation, and damages." (Woolard v. Regent Real Estate Services, Inc. (2024) 107 Cal.App.5th 783, 791.)

Here, Plaintiffs allege that Tuttle breached its duty of care by "failing to properly store, prepare and repair" the Vehicle in accordance with industry standards. (FAC, ¶ 68.) The evidentiary record suggests that Plaintiffs presented the Vehicle to Tuttle on at least four occasions for repairs between February 2025 and June 2026. (Rader Decl., Exhs. 5, 6, and 7; Raxcaco Decl., Exh. 1.) Tuttle provided routine maintenance on at least two occasions and diagnosed and performed warranty repairs on the Vehicle on at least one occasion. (Rader Decl., Exhs. 5, 6, and 7.) Mr. Rader declares that Tuttle commenced and completed all services on the Vehicle consistently with industry standards. (Id. ¶ 9.) The Vehicle's service records corroborate this testimony. Moreover, Plaintiffs do not allege that they suffered any non-economic harm as a result of the purported negligence of any Tuttle employees. (FAC, ¶ 69.)

Even if the failure to repair the Vehicle's above-identified defects may constitute statutory violations under the Song-Beverly Act, the evidentiary record here fails to indicate that Tuttle breached a duty of care or harmed Plaintiff in a manner constituting common law negligence. Plaintiffs entirely omit any arguments related to their negligent repair claim from their Opposition. Accordingly, the Court finds that Plaintiffs fail to overcome their responsive burden with respect to the fifth cause of action in the FAC.

Based on the aforementioned analysis, the Court finds that summary adjudication of the first through fourth causes of action against FCA for violations of the Song-Beverly Act is not warranted, however, Defendants have adequately demonstrated that Tuttle is entitled to summary adjudication of the fifth cause of action in its favor. Therefore, Defendants' Motion for Summary Adjudication is DENIED in part and GRANTED in part.

II. EVIDENTIARY OBJECTIONS

Plaintiffs object to the Declaration of Colin P. Cronin (Nos. 1-2). The following evidentiary objections are SUSTAINED: 2 (lacks personal knowledge, lack of authentication). The following evidentiary objections are OVERRULED: 1.

Plaintiffs object to the Declaration of Richard Rader (Nos. 1-6). The following evidentiary objections are SUSTAINED: 4 (lacks personal knowledge). The following evidentiary objections are OVERRULED: 1, 2, 3, 5, and 6.

Defendants object to the Declaration of Ana Maria Victoria Morales Raxcaco (Nos. 1-7). The following evidentiary objections are OVERRULED: 1, 2, 3, 4, 5, 6, and 7. While FCA argues that Ms. Raxcaco's declaration is inadmissible under the D'Amico rule, FCA does not identify any specific citations to testimony in her deposition that contradicts her later declaration.

Defendants object to the Declaration of Matthew Pardo (Nos. 1-2). The following evidentiary objections are OVERRULED: 1 and 2.

Defendants object to the Declaration of Randall Bounds (Nos. 1-5). The following evidentiary objections are SUSTAINED: 1-5 (undisclosed expert testimony).

III. REQUESTS FOR JUDICIAL NOTICE

Defendants request judicial notice of the following documents in support of their motion for summary adjudication:

1. FCA's Safety Recall (Z48 DFB / NHTSA 22V-426 24v-944)
2. Plaintiffs' Summons and FAC filed in this action
3. Notice of Ruling on Demurrer and Motion to Strike (dated 4/2/2026)

The Court declines to take judicial notice of Exhibit 1, as it is already submitted into evidence and the facts underlying the request are not a proper subject of judicial notice. The Court takes judicial notice of the existence of Exhibits 2 and 3 as court records in the instant action, pursuant to Evidence Code section 452, subdivision (d).

Plaintiffs request judicial notice of 49 C.F.R. § 571.111. The Court takes judicial notice of this federal motor vehicle safety regulation pursuant to Evidence Code section 452, subdivision (b).

Defendants FCA US, LLC and Tuttle-Click's Tustin Chrysler Jeep Dodge Ram to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to counsel and posted to court's website on 7/7/2026 at 1:30 p.m.